

Customer Communication			Work Instruction
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Overview

Purpose	This document describes requirements for customer communication.
Scope	This document applies to functions that perform activities related to customer communications associated with the complaint handling process.
Roles	Formally Designated Complaint Handling Unit - Complaint Unit - Region Complaint Unit

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Terms and Definitions

Term	Definition	Source
Constituent Part Applicant	The applicant for a constituent part of a combination product the constituent parts of which are marketed under applications held by different applicants.	21 CFR 4
Cross-labeled Combination Product	A drug, device, or biological product packaged separately that, according to its investigational plan or proposed labeling, is intended for use only with an approved, individually specified drug, device, or biological product where both are required to achieve the intended use,	21 CFR 3.2

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Term	Definition	Source
	indication, or effect and, where upon approval of the proposed product, the labeling of the approved product would need to be changed Or, Any investigational drug, device, or biological product packaged separately that, according to its proposed labeling, is for use only with another individually specified investigational drug, device, or biological product where both are required to achieve the intended use, indication, or effect.	
Good Faith Effort (GFE)	Attempt(s) required to obtain information for complaint investigation.	Medtronic
Legal Hold	An event that is potentially involved in any type of litigation. A legal hold (also known as preservation order or hold order) is a stipulation requiring a company to preserve all data that may relate to a legal action involving the company. This requirement ensures that the data in question will be available for the discovery process prior to litigation. The standard generally used for when to issue a legal hold is "reasonable anticipation of litigation."	Medtronic
Original Equipment Manufacturer (OEM) Product	An external supplier of a finished device, drug, biologic, human tissue or combination product which: - Owns the design and manufacture; - Is designated as the Legal Manufacturer; and - Owns primary regulatory responsibility. Medtronic may perform certain other regulatory actions / responsibilities (e.g., product registration and listing) in specific geographies.	Medtronic
Patient-Owned Product	All products implanted or otherwise connected to the body in the medium to long term, such as pacemakers, neurostimulators, leads, vertebral body replacement systems, hernia meshes, staple sutures, insulin pumps and associated tubing systems. Includes external components (HVAD batteries and charging stations, patient monitors and control devices) in the possession of the patient.	Medtronic
Permanent Impairment or Damage/Permanent / Permanent Disability	Irreversible impairment or damage to a body structure or function, excluding trivial impairment or damage. NOTE: If it is unclear if the impairment/damage is trivial, determination shall be made by a Person Qualified to Make a Medical Judgment. Data inputs into this decision may include, but are not limited to, the following:	21 CFR 803 Source for "NOTE" Medtronic

Term	Definition	Source
	▪ The risk assessment document assigned severity for the failure mode ▪ Hazard analysis and/or situation analysis for the failure mode ▪ Assessment of the severity of the event	
Serious Injury	An injury or illness that: ▪ Is life threatening; or ▪ Results in permanent impairment of a body function or permanent damage to a body structure; or ▪ Necessitates medical or surgical intervention to preclude permanent impairment of a body function or permanent damage to a body structure.	21 CFR 803

Process Overview



The Formally Designated Complaint Handling Unit is responsible for customer communications.

Complaint Unit	Responsibilities
Operating Unit (OU) Complaint Unit	▪ Determine required follow-up information. ▪ Execute the request for follow-up information. ▪ Initiate the request for the return of the product, as applicable. ▪ Create the customer response when required. ▪ Notify Original Equipment Manufacturer (OEM) of an event. Non-Medtronic Product Notification Letter: The Complaint Unit that receives a non-Medtronic product complaint (in error) is responsible for Process Section 2. ▪ Cross-labeled Combination Product communications.
Region Complaint Unit	▪ Execute the request for follow-up information, per regional requirements. Translation coordination as needed.

Process Detail

1. Follow Up for Additional Information/Product Return

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Review the event to determine if any of the following are applicable. If applicable, process GFE accordingly. ▪ Legal Hold: If a complaint record is subject to a potential litigation (legal hold) or has been subject to a previous legal hold, send requests for additional information to Medtronic personnel only. Requests for additional information regarding the complaint cannot be sent to non-Medtronic health care professionals (HCPs), patients, or healthcare facilities. Exceptions to this may be arranged with approval from the Medtronic Legal team. ▪ Literature Events: An author of the article should be contacted for GFE. If the article does not contain an author's contact information, and their contact information cannot be identified online, contact the facility referenced within the article to pursue GFE. One GFE request is required (see Appendix A). ▪ Clinical Study Events: – If a complaint originates from a Clinical Study and requests for additional information are being facilitated through the Medtronic Clinical Study, GFE requirements can be met via the Clinical Study process for conducting site queries. One GFE request for additional information is required (see Appendix A). Resolution of the request for additional information will be facilitated and monitored as part of the Clinical Study. – If a patient has exited a clinical study, and the clinical study team indicates the information is unavailable/unable to be obtained, no further GFE is needed. ▪ German Patient Consent: For a complaint on a patient-owned device that originates from Germany, patient consent is required for product analysis. Send a request for patient consent if not initially obtained. Consent is not required for veterinary cases. ▪ Complaint Handling Field Corrective Action (FCA): Typical communication after customers have been notified of the

Step	Role	Action
		FCA should be limited to complaint information and not information regarding the FCA. ▪ Unknown Device Problem/Failure Mode or Impact to Patient: Consider using methods in addition to direct follow-up with the initial reporter to expedite obtaining this information. For example: If incoming information provides an error code that is unfamiliar, in addition to follow-up with the initial reporter, consultation with a Technical Support expert, Medical Safety Clinician or review of the IFU may be needed to ensure timely understanding to inform a Regulatory Report Decision. ▪ Social Media Events: When a complaint record originates from a social media post and additional information is required to meet GFE, the applicable field representative and/or HCP may be contacted if they are identified. The Medtronic Global Social Media team may also be contacted to facilitate the necessary number of GFE attempts. The Medtronic Global Social Media team is the team or individual who submitted the complaint to the Complaint Handling unit. ▪ Analysis during Servicing: If the product is serviced, regardless of where the servicing took place, and the technician completed all testing during servicing that would be completed if the product was returned to an analysis center, GFE is not needed for the product return.
2.	Formally Designated Complaint Handling Unit	Review record for any required information that is missing. Complete GFE attempt(s) as required for the event, including for product return (when applicable). The number and format of GFE follow-up attempts depends on the severity of the event. Use the most appropriate contact(s) available to complete the required number of GFE attempts, including at least one external contact when available. Refer to Appendix A - <i>Good Faith Effort Flow Chart</i> to determine how many GFE attempts are required for the event. NOTES: ▪ GFE requests should be as specific and concise as possible. ▪ Document all communication and communication attempts in English in the complaint record. If

Step	Role	Action
		translation is required, both the English and translated versions should be included in the complaint record. ▪ Personal information related to patient demographics or weight is collected at intake when it is provided by the initial reporter and is permitted per regional patient privacy laws. Additional follow-up for such topics is only required when the information is relevant to the complaint investigation and is permitted per that country's patient privacy laws (see 027-WI185, <i>Intake, Assessment, and Complaint Determination</i>). ▪ Patients may only be contacted according to the applicable privacy regulations for their region. See 027-WI185 for patient privacy restrictions. ▪ If the incoming information states additional information may be obtained on or after a specific date, perform follow-up after the date provided. GFE Attempts include any of the following: • Email, letter or fax communication is successfully sent. • Outbound communication is returned as undeliverable, and no alternative contact is provided or available. • A phone call to follow-up contact is placed and the follow-up contact: ○ Provides the information requested ○ Indicates they do not wish to be contacted for further information ○ Indicates information is unknown, or it will not be made available • A phone call to follow-up contact is placed; however there is no answer and: ○ There is no option to leave a voicemail and there is no alternative method for follow-up, or ○ A voicemail is left requesting the information ▪ For Product Return GFE: – If the source information indicates that the product will be returned, and the product is not received, the appropriate number of GFE per <i>Appendix A</i> needs to be fulfilled to confirm return status.
3.	Formally Designated Complaint Handling Unit	Document all GFE attempts and responses. Response Received: ▪ Process new information per 027-WI185

Step	Role	Action
		- Review response to ensure all requested information is provided. If required information has not been provided and the reply does not indicate “unknown” or “unavailable” for that information, continue to make additional attempts until the required number of GFE attempts have been met per <i>Appendix A</i>. No Response Received: - If a follow-up request is not responded to, make additional attempts until the required number of GFE attempts have been met per <i>Appendix A</i> or the necessary information has been received. Communication Refusal: - External sources (e.g., facility, HCP) may indicate refusal of all additional information requests from Medtronic. Documentation of this refusal may be added to the complaint record as a rationale for not attempting to obtain additional information.
4.	Formally Designated Complaint Handling Unit	Review each response and determine whether GFE attempts have been successfully completed: GFE for information is considered achieved/complete when any of the following criteria is met: - The required information is received. - The required information remains unknown; however, the required number of GFE attempts have been met. See <i>Appendix A</i> for details. GFE for product return is considered achieved/complete for product return when any of the following criteria is met: - Complaint product has been received at a Medtronic facility - Rationale for no product return has been provided - Required number of GFE attempts have been completed. See <i>Appendix A</i> for details. NOTE: - If the GFE request cannot be met, a reason or rationale must be documented within the event record. - See “Analysis during Servicing” in Section 1, Step 1, for information on when product return GFE is not needed for a product that was serviced.

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Step	Role	Action
5.	Formally Designated Complaint Handling Unit	Prior to closing GFE communication, ensure the complaint record captures one of the following situations: ▪ All necessary information has been received, or ▪ The required number/format of GFE attempts have been made per <i>Appendix A</i>.

2. Non-Medtronic Product Notification Letters

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	When event information is received in error concerning products not manufactured by Medtronic, the Complaint Unit that received the complaint is responsible for forwarding the information to the FDA, including an explanation that Medtronic did not manufacture or import the device in question. This requirement does not apply to products from third party business partners for which the Complaint Unit has a contractual agreement that stipulates reporting responsibilities belong to the third party. If the third-party business partner is responsible for regulatory reporting, the complaint information will be forwarded to the third party for reportability determination and regulatory reporting.

3. Customer Response/Analysis Letter

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	If a customer response is requested (ex: a letter with product analysis results), draft the appropriate response. ▪ If the complaint record is on a legal hold, or if a pre-approved letter template is not being used, additional, regional or legal approval of the customer response may be required. ▪ A customer response letter may not be needed in the following situations: — No response was requested — The event is a Service & Repair event where a response for the same issue has already been provided to the customer

Step	Role	Action
		– If the recipient for a response cannot be determined after conducting GFE – Events that originate from clinical studies, literature, or social media – Events that are re-opened after initial closure due to CAPAs or remediation efforts – Events concerning OEM products (See Section 5, Step 1)
2.		Translations: – Coordinate translation from English to the appropriate regional language if required for the customer response. – If translations are required, document both the English version and translated version in the complaint record.
3.		Send Customer Response Letter to the appropriate recipient identified and follow any/all local processes as applicable for additional detailed instructions.
4.		If a customer replies to the customer response communication, document the customer response in the complaint record. Process any new information per 027-WI185.

4. Cross-Labeled Combination Product Communications

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	When required per 027-WI185, communicate the cross-labeled combination product to the Constituent Part Applicant. Document the following as part of the communication: ▪ A copy of the information provided ▪ The date the information was received ▪ The date the information was provided to the other Constituent Part Applicant(s) ▪ The name and address of the other Constituent Part Applicant(s) who provided the information

5. OEM Event Notification

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Notify the OEM of the complaint and include the following in the notification as needed: ▪ Request for OEM input for Reportability Decision if Medtronic has reporting responsibility per <i>Appendix H</i> in 027-WI185. ▪ If a regulatory report is required, request information required to meet reporting obligations (e.g., Product Analysis Results, Investigation Results, Corrective Actions taken). – This request for additional information from the OEM may not be applicable if Medtronic already has the information – e.g., if Medtronic is completing the Complaint Investigation on behalf of the OEM. ▪ Indication whether a Customer Response Letter was requested. Note: OEM will be responsible for completing and submitting the Customer Response Letter, unless otherwise noted in the Supplier Quality Agreement. NOTE: When information is received from the OEM, notify the Region Complaint Unit where applicable.

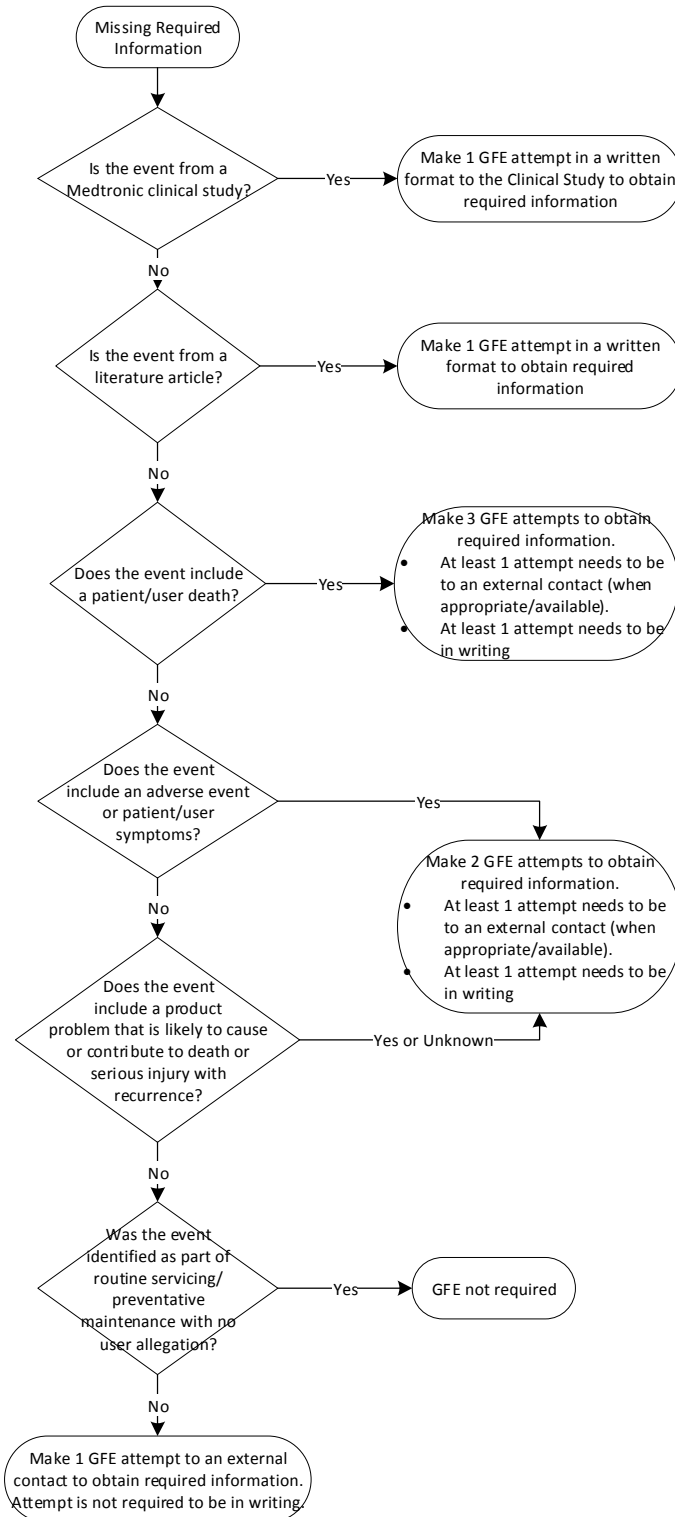
References

Number	Title
027-WI185	Intake, Assessment, and Complaint Determination

Quality Records

Quality Record	Required Approvals
Complaint Record	None

Appendix A – Good Faith Effort Flow Chart



Note: An internal (Medtronic) contact outside of the complaint handling unit may be the individual who facilitates the external communication. For example, the regional complaint unit may request that the Medtronic field representative contacts the customer (the external contact) to obtain the information. In this case, the complaint unit has not contacted the external contact directly; however, if the field representative confirms that they contacted the external individual, that is considered an external attempt